NINJAS STEM FOUNDATION

Donation & Gift Acceptance Policy

Financial Stewardship & Fundraising

Policy ID: NSF-GF-01	Status: Proposed — not adopted
Effective date: [Board to establish]	Publication: Public donor-facing policy; donor registers and completed gift agreements remain internal

1. Purpose and scope

NSF may receive support that furthers its youth STEM educational and charitable purposes. This Policy establishes who may solicit or accept gifts; how cash, noncash property, restrictions, fees, and sponsor benefits are classified; and how donors receive accurate acknowledgments. Gifts shall not be used to purchase a child's admission, team role, Board position, or preferential treatment.

This is a policy of NSF, not a guarantee of tax deductibility for every payment or tax classification. IRS status and specific gift treatment must be verified for the relevant transaction. The financial management policy controls receipt deposit and recordkeeping.

2. Types of proposed support

NSF may consider unrestricted monetary gifts, written purpose-restricted gifts, eligible grants, matching gifts, donated tools/robotics kits and equipment, technology or software rights, professional services, securities, and other property. Sponsorships, paid program services, sales, and event receipts must be accurately classified instead of automatically called donations.

No volunteer may solicit or receive funds using NSF's name, banking details, or tax identification number outside an approved arrangement. All payments shall be directed to an approved NSF account or processor; an independent team or family may not hold itself out as receiving donations "through NSF" without approved oversight and an agreement.

3. Authority to accept, restrict, or refuse a gift

The Board may delegate receipt of ordinary unrestricted monetary gifts through designated NSF channels. A proposed restricted, unusual, high-value, or noncash gift involving material handling costs, title uncertainty, safety risks, ongoing obligations, donor control, reputational concern, or valuation complexity requires a documented acceptance review by an authorized decision-maker.

The Foundation may decline or negotiate a proposed gift if its conditions are inconsistent with charitable purposes, create inappropriate personal benefit, impair program independence, exceed capacity, or introduce unacceptable obligations. A restriction appearing in an approved solicitation or grant term may have legal effect even without a separate instrument signed by the donor.

4. Restricted gifts and designations

Record the precise restriction, affected program, donor contact when available, authorized acceptance, timing, reporting obligations, and permitted changes. Distinguish (i) legally restricted gifts from (ii) unrestricted funds internally designated by the Board. Program-specific outreach or competition support may be restricted by legally effective terms; a later budget vote does not itself remove the restriction.

If an intended program becomes impossible, impracticable, or is canceled, do not silently transfer restricted funds to another program. Seek a lawful resolution under the gift instrument, grant contract, applicable law, and where relevant Texas Property Code Chapter 163. The Chapter 163 "institutional fund" rules have defined scope, including an exclusion for program-related assets; not every donated item falls within that framework.

5. Gifts, required fees, and family fundraising

An authentic charitable gift is voluntary. If participation or a particular benefit requires payment under a separately approved prospective fee schedule, describe that amount and applicable refund/cancellation terms as a charge, not a donation. No required family assessment, minimum fundraising amount, or purchase may be disguised as a voluntary gift.

NSF does not use individual family fundraising credits or personal earmarked accounts under which a family's fundraising automatically pays only its child's fees or creates an individual asset claim. Financial assistance and waivers follow separately approved, consistent educational criteria. This safeguard applies across Foundation-operated teams and community programs.

6. Gift refunds, corrections, and grant repayments

A completed voluntary charitable contribution is generally nonrefundable. A donor's departure or disagreement with NSF, or a program schedule change, does not alone establish a repayment entitlement. However, the Foundation shall honor applicable court orders, enforceable obligations, legally binding grant conditions, and corrections to erroneous or duplicate receipts.

A discretionary gift return, adjustment, or settlement requires documented authorization from the proper decision-maker, conflict review, and legal/tax advice when warranted. The Board's decision must state its basis and whether NSF has authority to use the particular funds for that purpose. Donation return, fee refund, and expense reimbursement are different transactions; this Policy does not decide any existing claim or recharacterize a pre-effective-date payment.

7. Noncash property, donor valuation, and loans

Before accepting equipment, identify the actual owner, donor's authority, physical condition, software license restrictions, safety/maintenance burdens, and whether the transfer is a completed gift or a revocable loan. Record property received and any conditions; issue a donation acknowledgment describing goods without assigning the donor's income-tax valuation unless legally necessary.

For tax forms related to substantial noncash gifts, identify NSF's applicable donee obligations and authorized signatories. A signed IRS Form 8283 acknowledgment, when applicable, acknowledges receipt and is not an appraisal. The donor, not NSF, is generally responsible for substantiating value; IRS Form 8282 dispositions may require separate review.

8. Donor acknowledgments and transparency

NSF will issue accurate donor receipts and other acknowledgments required by law. For a donor's deduction of a monetary or property gift of $250 or more, contemporaneous written acknowledgment requirements generally apply to the donor. Qualifying quid pro quo payments above $75 generally trigger charity disclosure requirements, subject to exceptions. These are different tests; current IRS instructions should control their application.

An acknowledgment should state NSF's legal name, date, amount of cash received or description of noncash property, and whether NSF provided goods or services (and a good-faith estimate where required). Do not declare contributions fully deductible when substantial return benefits were supplied. Respect donor anonymity requests where lawful, without promising secrecy contrary to disclosure or legal-production duties.

9. Review, records, and prospective effect

Maintain a gift/restriction register, copies of material solicitation language and grants, approval decisions, receipts, donor communications, and related reports. Public donor recognition and marketing require appropriate permission. This Policy applies prospectively and may be amended only under properly authorized procedures.

Selected governing and drafting references

These references inform the draft. Other-state peer practices are illustrative only; they are not Texas legal requirements. Applicable law and the Foundation's validly adopted Certificate and Bylaws control.

IRS donation substantiation and quid pro quo disclosures: https://www.irs.gov/charities-non-profits/substantiating-charitable-contributions

IRS donated-property reporting: https://www.irs.gov/instructions/i8283

Texas restricted institutional funds: https://tcss.legis.texas.gov/resources/PR/htm/PR.163.htm

Qualified sponsorship distinctions: https://www.irs.gov/charities-non-profits/advertising-or-qualified-sponsorship-payments